IN THE CIRCUIT COURT HELD AT KWABENYA ON MONDAY THE 25TH DAY OF AUGUST, 2025 BEFORE HER HONOUR MAWUSI BEDJRAH, CIRCUIT JUDGE

CASE NO. GR/KB/CCT/A1/02/2020

ABEL ADADE AYAYI **PLAINTIFF**
Suing per his lawful attorney
Enoch Sedzro

VRS

VERONICA BOADU **DEFENDANT**

PLAINTIFF'S LAWFUL ATTORNEY **PRESENT**
DEFENDANT **PRESENT**
KOJO OSEI ODAME FOR PLAINTIFF **PRESENT**
ESTHER OPOKU ASAMOAH HOLDING THE BRIEF OF FRANCIS XAVIER SOSU FOR DEFENDANT **PRESENT**

JUDGMENT

Plaintiff, per the writ of summons and statement of claim filed on 23rd October 2019, claims against Defendant the following;

i. Declaration of title to all that piece or parcel of land situate, lying and being at Abese-Pokuase in the Ga West District in the Greater Accra Region of the Republic of Ghana bounded on the North-East by Assignor's land measuring 70 feet more or less, on the South-East by Assignor's land measuring 100 feet more or less, on the South-West by proposed road measuring 70 feet more or less on the North-West by Assignor's land measuring 100 feet more or less and containing an approximate area of 0.16 acre or 0.7 hectare more or less which piece or parcel of land is more particularly delineated on the plan attached hereto and thereon shewn edged pink which shows the relevant measurements.
ii. Recovery of possession of any portion of Plaintiff's land trespassed or encroached on by Defendant.
iii. An order of demolition at Defendant's expense of any illegal structure or structures erected on the Plaintiff's land by Defendant.
iv. An order of perpetual injunction restraining Defendant, her agents, privies, assigns, servants, workmen and all people claiming through her

from entering and dealing with Plaintiff's land the subject matter of this suit.

v. General damages for trespass.

vi. Costs including legal fees.

Defendant, per her statement of defence and counterclaim filed on 1st September 2020, denies the assertions of Plaintiff and counterclaims against Plaintiff as follows;

i. Declaration of title to all that piece or parcel of land situate at Pokuase-Accra in the Greater Accra Region aforementioned containing an approximate area of 0.18 acres (0.7 hectare) and bounded on the North-West by Lessor's land measuring 99.0 feet more or less on the North-East measuring 61.1 feet more or less on the South-West by Lessor's land measuring 68.9 feet respectively more or less on the South-East by Lessor's land measuring 99.7 feet respectively more or less which said piece of land is more particularly delineated on the plan attached hereto and thereon shewn edged pink.

ii. An order of perpetual injunction against the Plaintiff, his successors, assigns and privies and all those who rightfully claim through her.

iii. General damages for trespass.

iv. Legal fees and costs.

Plaintiff, per a reply and defence to counterclaim filed on 11th September 2020, denies Defendant's assertions. Plaintiff says, among others, that Defendant is not entitled to the reliefs endorsed in her counterclaim.

PLAINTIFFS' CASE

Plaintiff is a businessman resident in Accra. Plaintiff avers that in or about May, 2010, he expressed interest in acquiring the land in dispute from his grantor. Plaintiff says that before he acquired the land in dispute he made the necessary due diligence by conducting a search at the Lands Commission. Plaintiff avers that the search results revealed that the land in dispute was registered to one Samuel Arthur Odoi Sykes of Accra. He approached the said Odoi Sykes and he agreed to assign the remainder of the unexpired term of his assignment to Plaintiff. Plaintiff says that by a Deed of Assignment dated 23rd November, 2010, his grantor assigned his unexpired term to him and that he took immediate possession after acquiring the land by dumping a big trip of sand and stones on it. He also placed four hundred (400) sandcrete blocks on the land, constructed footings for a chamber and hall on same, visited the land regularly and

continuously cleared same of weeds and shrubs. He also employed the services of a caretaker who lived in the area to keep an eye on the land for him.
Plaintiff says that in or about February, 2018, he visited the land and noticed a person had commenced construction work on the land. After diligent search for the person proved futile, he demolished the illegal structure on the land. Plaintiff says that he was later invited by the Pokuase Divisional Police Investigator for allegedly causing damage to property. It was at the police station that he got to know that it was the Defendant who had commenced the construction work and made the complaint to the police. The investigator asked him to produce his document which he did. The Pokuase Police later invited him and Defendant with Defendant's grantors for an amicable settlement and it was agreed that Defendant's grantors will provide Defendant with another land as replacement. Plaintiff avers that he also agreed to reconstruct Defendant's demolished footings on the new or alternative land at his own expense. After a month, Defendant called to inform him that she had been given another land by her grantors and he commenced construction on Defendant's new land by digging trenches and constructed footings. Plaintiff avers that he was in the process of continuing the work when he was invited again by the Pokuase Police Commander, who informed him that Defendant was no longer interested in the new land and that she preferred the land given to Plaintiff. Plaintiff says that Defendant, with the help of the Pokuase police, went back to his land and re-started the construction works in earnest. Plaintiff avers that all his pleas to the Pokuase Police to stop Defendant from further construction were ignored and Defendant has developed the land. Plaintiff says that Defendant has evinced a clear intention of depriving him of his legally acquired property unless restrained by this Honourable Court.

DEFENDANT'S CASE

Defendant on the other hand, denies the allegations and states that she is the owner in possession of the land. Defendant says that she acquired the land in dispute in 2017 by an indenture dated 25th May, 2017 executed between the Nii Opah Kofi Family of Pokuase and their head of family, Godfrey Odartei Lamptey on the one side and Defendant on the other side. Defendant says further that she obtained a 50-year leasehold interest in the land and that Plaintiff demolished her legally and rightfully erected structure. Defendant also says that she made the complaint to the police and at the police station, they were each asked to bring their documents for a search to be conducted at the

Lands Commission to determine which of their grantors had title to the land. Plaintiff then, at the time, suggested that he would be willing to re-construct her structure he demolished on an alternative land that her grantors would give her. Defendant says that when the results from the Lands Commission came, her grantors were the rightful owners of the land as the land had been registered in their name. As a result, the Police Commander asked her to go back to the land to continue her work whiles the family looked for an alternate land for Plaintiff because though his grantor was from the same family as her grantors, he did not have authority to sell the family's land to anyone.
Defendant further says that the agreement to reconstruct was made before the search results and that whiles no documentation had been made on the new land, Plaintiff called to inform her that he had transported sand and stones to commence construction but she asked him to hold on till she had documentation. However, Plaintiff kept pushing her to give him permission to commence the project and when she was not forthcoming, Plaintiff on his own volition dug trenches and even started concreting the foundation. Defendant says that when Plaintiff persisted in pushing her to allow him to commence construction, she informed the family about it and the family called them to a meeting, where they both went with their documents. Defendant says that when she went to the meeting place, Plaintiff had left but the family told her that they had a conversation with Plaintiff and told him that he should take the alternate land because Defendant had started work on the land in dispute already. After this meeting, she went back to her land to commence construction and the family even gave her some persons to protect her on the land. Defendant says that she only went back to the land in dispute because her grantors were shown to be the registered owners of the land and that the building she started constructing has even been roofed and her sister is occupying it.

Plaintiff, in his reply and counterclaim filed on 11th September, 2020, joins issues with Defendant on her Statement of Defence. Plaintiff admits that the Nii Opah Kofi Family is indeed the allodial owner of the land in dispute and that the Nii Opah Kofi Family acting through the then joint heads, Emmanuel Odartey Lamptey and Godfred Nii Lamptey executed a Deed of Lease in favour of Plaintiff's Assignor on 21st July, 2021. Plaintiff shall contend that the Nii Opah Family, having granted a 99 year lease to Plaintiff's Assignor, the family did not have any land to again lease to Defendant.

The issues for determination as adopted by the Court on 6th October, 2020, based on the issues filed by Plaintiffs and additional issues filed by Defendant are as follows:

i. Whether or not the Nii Opah Family acting through the then Joint Heads of Family; Emmanuel Odartey Lamptey and Godfred Nii Lamptey executed a 99 year Deed of Lease in favour of the Plaintiff's Assignor on 21st July, 2001?
ii. Whether or not the Plaintiff acquired the land in dispute from his Assignor, Samuel Arthur Odoi Sykes by a Deed of Assignment dated 23rd November, 2010?
iii. Whether or not the Defendant's grantor offered an alternative land to the Defendant after the Defendant's grantor realized that the land in dispute had already been acquired by Plaintiff?
iv. Whether or not the Nii Opah Kofi Family having granted a 99 year lease to the Plaintiff's Assignor in 2001 can legally grant another 50 year lease of the same land to the Defendant in 2017?
v. Whether or not the Defendant is a trespasser on the Plaintiff's land?
vi. Whether or not Plaintiff is entitled to the reliefs endorsed on his Writ of Summons and Statement of Claim?
vii. Whether or not the grantors of Plaintiff's Assignor had the authority of the Nii Opah Kofi Family to grant interests in the disputed land to Plaintiff?
viii. Whether or not the Defendant is entitled to the reliefs endorsed in her counterclaim.

BURDEN OF PROOF

Sections 10 (1) of the Evidence Act, 1975, (Act 323) provides the burden of persuasion as *"**…the obligation of a party to establish a requisite degree of belief concerning a fact in the mind of the tribunal of fact or the court.**"* *Section 11 (1) further defines the burden of producing evidence as "**…the obligation of a party to introduce sufficient evidence to avoid a ruling against him on the issue**."*

Further, per Section 14 of Act 323, *"**Except as otherwise provided by law, unless and until it is shifted, a party has the burden of persuasion as to each fact the existence or non-existence of which is essential to the claim or defence he is asserting**".*

Thus, the basic principle in the law of evidence is that the burden of persuasion on proving all facts essential to any claim lies on whosoever is making the claim. This has been the guiding principle in deciding civil cases, a recent case to this effect being **ARYEE V SHELL GHANA LTD & FRAGA OIL LTD** (2017-2020) SCGLR 721.

In this regard, per the claims of Plaintiffs and Defendant, they, on their respective parts, have a burden to discharge to adduce sufficient evidence on the issues raised to avoid a ruling against them. The standard of the burden is one of preponderance of probabilities, as provided in Sections 11(4) and 12 (1) of Act 323. (See **BISI & OTHERS V TABIRI ALIAS ASARE** [1987-1988] 1 GLR 360 at page 361.

EVIDENCE ADDUCED

EVIDENCE OF PLAINTIFF

Plaintiff called two witnesses to testify for and on his behalf, being Enoch Sedzro, Plaintiff's lawful attorney and Emmanuel Frimpong Okyere (PW1), who is a valuer and lawyer.

The evidence of Plaintiff's lawful attorney is a rehash of Plaintiff's pleadings. PW1's evidence is that he got to know Plaintiff when he and Plaintiff acquired a plot of land each from the same Assignor, Samuel Arthur Odoi Sykes. He acted as agent for a friend of his who lives in Canada and had expressed interest in acquiring a piece of land. He acquired the land through Nii Lantey, the Chief of Abbesey-Pokuase. The Plaintiff came to see him and informed him that Nii Lantey had asked him (Plaintiff) to come and see him (PW1) to confirm that he had indeed acquired one plot from Samuel Odoi Sykes for his friend in Canada. Samuel Arthur Odoi Sykes had earlier been granted a 99 year lease by the Nii Opah Family acting through the then joint heads of family; Emmanuel Odartey Lamptey and Godfred Nii Lamptey on 21st July, 2001.

The Deed of Lease was duly registered, out of which Samuel Arthur Odoi Sykes assigned one plot of land each to the Plaintiff and the friend for whom he acted as his agent, in respect of which a Deed of Assignment was executed in the friend's favour. The same person who granted or sold the land in dispute to the Defendant also sold his friend's land to a third party. The matter was referred to the Property Fraud Unit of the Ghana Police Service and he was invited by the police to produce the friend's document, which he did. After the police investigation, it was confirmed that he had indeed acquired his friend's land from Samuel Arthur Odoi Sykes, who has since constructed a hotel on the land.

According to PW1, he knows that there has been a spilt in the Nii Opah Family of Pokuase since 2010. There are two factions now, each with its own family head and these parallel family heads are granting Nii Opah Family lands which have already been sold. Some of the family members of the Nii Opah Kofi Family have engaged in double land sales and that he knows that the land in dispute does not belong to Defendant. The land had long been acquired by the Plaintiff from Samuel Odoi Sykes before the Defendant purportedly acquired same from some members of the Nii Opah Kofi Family. The Defendant only came onto the land sometime in 2018.

At the close of Plaintiffs' testimony, the following documents were tendered;

i. Power of Attorney dated 15th April, 2019 from Abel Adade Ayayi to Enoch Sedzro- Exhibit 'A'
ii. Deed of Assignment between Samuel Arthur Odoi Sykes and Adade Abel Ayayi- Exhibit 'B'
iii. A trip each of sand and stones, four hundred (400) sand mixed with cement blocks on the land and footings for a chamber and hall structure - Exhibit 'C' series
iv. Restarted construction works on the land in dispute by Defendant as Exhibit 'E' series
v. Deed of Lease dated 21st July, 2001 between Emmanuel Odartey Lamptey and Godfred Nii Lamptey on the one part and Samuel Odoi Sykes on the other part as Exhibit 'F'
vi. Completed single room structure on the land in dispute by Defendant as Exhibit 'G' series

EVIDENCE OF DEFENDANT

Defendant testified by herself and called an additional witness, Edward Odartey Lamptey (DW1). Defendant's testimony was also a rehash of her pleadings. DW1 is an elder and secretary of the Nii Opah Kofi Family of Abesey, Pokuase. His testimony is that the Nii Opah Kofi Family has since time immemorial exercised control of Abesey lands and that on 1st July, 2001, an indenture was drawn by Emmanuel Odartey Lamptey (Okyirikomfo) and his nephew Godfred Nii Lamptey (A.K.A Osofo) as two heads of the Nii Opah Kofi Family and they by that Indenture fraudulently leased the Abesey family land to themselves as owners and registered same within the Lands Commission Accra, for a period of 99 years.

When the family discovered that the said two joint heads had conveyed large

tracts of lands into their personal names, plotted same and were recklessly selling the family land, he instituted a legal suit in October 2010 at the Circuit Court, acting as a principal member suing for himself and on behalf of the family. At the close of pleadings, parties agreed to settle the matter, agreed on some terms and filed same as terms of settlement on 16th February, 2011, which was adopted as Consent Judgment. Pursuant to the Consent Judgment, the Court expunged the names of Emmanuel Odartey Lamptey and Godfred Nii Lamptey from its plotted records and substituted same with the Nii Opah Family. On Thursday, March 14, 2023, they warned the general public by a publication in the Daily Graphic that the aforementioned persons did not have the consent of the elders of the Nii Opah Kofi Family to alienate any part of the land and those who continued to deal with them did so at their own risk. In the same publication, they informed the general public that all persons interested in the said lands were to contact Godfred Odartei Lamptey and the principal members of the Nii Opah Kofi Family of Pokuase.

On the 22nd day of March, 2017, they again notified all the occupants on the land to attorn tenancy to the Nii Opah Kofi Family within 14 days at the family office but only a few persons attended. Samuel Arthur Odoi Sykes did not attend the meeting. On 25th May, 2017, the family leased the land in dispute to Andrews Boadu and Veronica Boadu. In 2018, Veronica Boadu informed the family of the demolition of her structure and they advised her to report to the police. The family elders then mobilized some members to parade the area and apprehend the culprit, following which Mr. Enoch Sedzro was apprehended as the main suspect and taken to the Pokuase police station. He did not deny demolishing the property but claimed ownership of the land in dispute. The parties were thus asked to produce their documents for a search and upon receipt of the search report, the commander told the parties to go to the grantors family house to resolve the matter in ten (10) days.

On 23rd August, 2018 at the family meeting between Enoch Sedzro and head and elders of the Nii Opah Kofi family at the family house, they examined Samuel Arthur Odoi Sykes and Mr. Adade Abel Ayayi's document and found that the lawful persons did not grant them the land. There was a misunderstanding, for which there was no consensus so the family took a decision and reported back to the commander, who after eight (8) days gave a final verdict.

At the close of Defendant's testimony, the following documents were tendered:

i. Copies of the Court processes in "Edward Lamptey suing as principal

member of the Nii Opah Kofi family versus Emmanuel Odartey Lamptey and Godfred Nii Lamptey and Executive Secretary Lands Commission with suit no. C11/35/2011" as Exhibit '1' series.

ii. A search report which shows that the land in dispute was registered in the name of Defendant's grantors as Exhibit '3'
iii. A copy of the police report as Exhibit '4'
iv. The Daily Graphic publication in respect of the Nii Opah Family land as Exhibit '5'

Exhibit '2', an indenture dated 25th May, 2017 by the Head of Family of the Nii Opah Family for Defendant was rejected by the Court as unstamped.

Upon completion of hearing, Counsel for Plaintiff filed his written address on 28th April, 2025, which has been considered in this judgment.

ASSESSMENT OF THE EVIDENCE AND APPLICATION OF THE LAW

i. **Whether or not the Nii Opah Family acting through the then Joint Heads of Family; Emmanuel Odartey Lamptey and Godfred Nii Lamptey executed a 99 year Deed of Lease in favour of the Plaintiff's Assignor on 21st July, 2001?**

The parties are ad idem about the location and description of the land in dispute. Plaintiff's Exhibit 'F' is a Lease dated 21st July, 2001 between Emmanuel Odartey Lamptey and Godfred Nii Lamptey, joint heads of Nii Opah Family of Abbessey with the consent and concurrence of the principal members of the family. The Lease is for a term of ninety-nine (99) years and has been duly registered. Beyond Exhibit 'F', DW1 confirmed under cross-examination that the said joint heads gave out the land in their capacity as joint heads. Thus, the Nii Opah Family acting through the then Joint Heads of Family, Emmanuel Odartey Lamptey and Godfred Nii Lamptey executed a 99 year Deed of Lease in favour of the Plaintiff's Assignor on 21st July, 2001.

ii. **Whether or not the Plaintiff acquired the land in dispute from his Assignor, Samuel Arthur Odoi Sykes by a Deed of Assignment dated 23rd November, 2010?**

Plaintiff's Exhibit 'B' is also a Deed of Assignment dated the 23rd day of November, 2010 between Samuel Arthur Odoi Sykes and Mr. Adade Abel Ayayi, whereby the Assignee agrees to assign part or portion of his interest in the leasehold property. This document has also been duly registered. Therefore,

the Plaintiff acquired the land in dispute from his Assignor, Samuel Arthur Odoi Sykes by a Deed of Assignment dated 23rd November, 2010.

iii. **Whether or not the Defendant's grantor offered an alternative land to the Defendant after the Defendant's grantor realized that the land in dispute had already been acquired by Plaintiff?**

The evidence of Defendant is clear that her grantor offered her an alternative land, per paragraph 8 of her witness statement as follows;

> *"My Lord about a month after I made the report at the police station, and the request for a search had been made at the Lands Commission, Plaintiff and I met with a representative of the Nii Opah Kofi Family who was in fact the son of Plaintiff's grantor and he showed us a new land as an alternative to mine."*

This is further confirmed in the cross-examination of Defendant as follows;

> "*Q: The people who sold the land to you actually offered you an alternative land in place of this land in dispute when the dispute arose. Is that not so?*
>
> *A: Yes, my Lady."*

iv. **Whether or not the Nii Opah Kofi Family having granted a 99 year lease to the Plaintiff's Assignor in 2001 can legally grant another 50 year lease of the same land to the Defendant in 2017?**

This issue would be the basis for determining whether or not the Plaintiff or Defendant is entitled to the reliefs sought.

As earlier noted, per Exhibit 'F', the Nii Opah Family granted a lease of 99 years to the Plaintiff's Assignor in 2001, following which Plaintiff's Deed of Assignment was executed in 2010, Exhibit 'B'. At the time of execution of Exhibit 'F' and subsequently Exhibit 'B', Plaintiff had no reason to doubt the capacity of his Assignor's grantors, who acted as the joint heads of the Nii Opah Family of Abessey, with the consent and concurrence of the principal members of the family. Per Defendant's evidence, the family later realised that the said two joint heads had conveyed large tracts of lands into their personal names, plotted same and were recklessly selling the family land and thus instituted a legal suit in October 2010, which finally resulted in Consent Judgment.

I find the need to reproduce the terms of the Consent Judgment as follows;

> *"1. The 3rd defendant must go ahead and expunge from their records the names of the 1st defendant Godfred Nii Lamptey @ Osofo and*

2nd defendant Emmanuel Odartey Lamptey forthwith and replace this with the family's name Nii Opah Kofi.

2. *That the present occupants of the land atone tenancy to Nii Opah Kofi Family."*

It is thus interesting to note the cross-examination of DW1 in this regard as follows;

"Q: When the Court ordered that the said registration be expunged, when was that effected?

A: 16th February, 2011

Q: Your terms of settlement after the suit is attached as Exhibit '1a'. Not so?

A: Yes, it is.

Q: In Exhibit '1a', did the Court say that you should go and recover possession from the occupants of the land?

A: Yes

Q: Can you show us in Exhibit '1a' where the Court said so?

A: I can't read."

The title of the suit in respect of the above Consent Judgment is "Edward Lamptey suing as principal member of the Nii Opah Kofi family versus Emmanuel Odartey Lamptey and Godfred Nii Lamptey and Executive Secretary Lands Commission with suit no. C11/35/2011". In as much as Plaintiff's Assignor's grantors are the ones who were sued, Plaintiff's Assignor himself is not part of the suit. Neither is there any evidence that he was notified of the initiation of the suit.

It is worthy to note that the suit was commenced on 12th October, 2010 and Consent Judgment entered on 25th January, 2011, whilst the Deed of Assignment was entered on 23rd November, 2010. Therefore, although the suit may have commenced earlier, the Deed of Assignment was executed before the Consent Judgment was entered into.

It is also interesting to note that the second paragraph of the Consent Judgment is that ***the present occupants of the land atone tenancy to Nii Opah Kofi Family.*** This being so, what steps did the Defendant's grantors take to ensure that tenancy is attorned to them? If they did take any steps, what was the response of such present occupants like the Plaintiff, to result in the family selling the land to Defendant?

Defendant's further testimony is that on Thursday, March 14, 2013, they warned the general public by a publication in the Daily Graphic that Emmanuel Odartey

Lamptey and Godfred Nii Lamptey did not have the consent of the elders of the Nii Opah Kofi Family to alienate any part of the land and those who continued to deal with them did so at their own risk.

Paragraph 3 of the Public Warning states that the aforementioned **have not the consent of the elders of Nii Opah Kofi family to alienate any part of the land** and per paragraph 4, **all persons interested in the said lands** were to contact Godfred Odartei Lamptey and the principal members of the Nii Opah Kofi Family of Pokuase. Obviously, Plaintiff's Assignor, having obtained their grant earlier, may not consider themselves as persons who continued to deal with their grantors so far as the alienation of the land is concerned. Neither are they likely to consider themselves as part of persons interested in the said lands and would, therefore, not contact Godfred Odartei Lamptey and the principal members of the Nii Opah Kofi Family of Pokuase. Consequently, the question of bringing the attornment of tenancy to the attention of Plaintiff's grantors and therefore, Plaintiff, has still not been answered. This question would have been answered, had DW1 substantiated his evidence that on the 22nd day of March, 2017, they again notified all the occupants on the land to attorn tenancy to the Nii Opah Kofi Family within 14 days at the family office for regularization. Unfortunately, beyond the statement, no record of same or document was produced. How then was this notification done? Was a specific letter written to Samuel Odoi Sykes and he refused to honour same? Was a letter equally sent to the Plaintiff or a notice posted to that effect?

I ask these questions, being guided by the principle that "A prior purchaser of land cannot be estopped as being privy in estate by a judgment against the vendor commenced after the purchase. (See **ATTRAM V ARYEE (1965)** GLR 341). This was affirmed in **KLU V KONADU** (2009) SCGLR 741 that as to a judgment affecting the land, it is a settled principle that a purchaser of land is not estopped or affected by a judgment adverse to his vendor in proceedings commenced subsequent to the acquisition of his title.

Per the above cases, the Nii Opah Kofi Family having granted a 99 year lease to the Plaintiff's Assignor in 2001, the family cannot legally grant another 50 year lease of the same land to the Defendant in 2017.

Plaintiff's grant, which was first in time, ought to prevail, irrespective of the contest by family members. Thus, after the family made the grant of the land in 2001, it divested itself of any interest and on the principle of *nemo dat quod non habet,* the family had nothing to convey again to the defendant in 2017 **(See**

TETTEH V HAYFORD [2012] 1 SCGLR 417). In effect, Defendant is a trespasser on the Plaintiff's land.

I do not find the need to discuss the issue as to whether or not the grantors of Plaintiff's Assignor had the authority of the Nii Opah Kofi Family to grant interests in the disputed land to Plaintiff, as a result of the decision reached on the earlier issue.

Further, the issues as to whether or not Plaintiff is entitled to the reliefs he is claiming or whether or not Defendant is entitled to her counterclaim should not have been issues set down for trial.

However, it is worth noting that the principle on the award of general damages as provided in **DELMAS AGENCY GHANA LTD. V FOOD DISTRIBUTORS INTERNATIONAL LTD** [2007 – 2008] SCGLR 748 is as follows:

> *'General damages is such as the law will presume to be the natural and probable consequence of the defendant's act. It arises by inference of the law and therefore need not be proved by evidence. The law implies general damage in every infringement of an absolute right. The catch is that only nominal damages are awarded.'*

CONCLUSION

On the totality of the evidence, Plaintiff is entitled to the reliefs sought as follows;

i. Declaration of title to all that piece or parcel of land situate, lying and being at Abese-Pokuase in the Ga West District in the Greater Accra Region of the Republic of Ghana bounded on the North-East by Assignor's land measuring 70 feet more or less, on the South-East by Assignor's land measuring 100 feet more or less, on the South-West by proposed road measuring 70 feet more or less on the North-West by Assignor's land measuring 100 feet more or less and containing an approximate area of 0.16 acre or 0.7 hectare more or less which piece or parcel of land is more particularly delineated on the plan attached hereto and thereon shewn edged pink which shows the relevant measurements.

ii. Plaintiff is to recover possession of any portion of Plaintiff's land trespassed or encroached on by Defendant.

iii. An order of perpetual injunction is hereby granted to restrain Defendant, her agents, privies, assigns, servants, workmen and all people claiming through her from entering and dealing with Plaintiff's land the subject matter of this suit.
iv. General damages of GH¢5000.00 is awarded for trespass.

I further award cost of GH¢5000.00 in favour of Plaintiff.

Defendant's counterclaim is accordingly dismissed.

Her Honour Mawusi Bedjrah
Circuit Judge